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Case Number: 24STCV00681 Hearing Date: June 23, 2026 Dept: 731

SUPERIOR COURT OF CALIFORNIA

COUNTY OF LOS ANGELES

DEPARTMENT 731

TENTATIVE RULING

DAVID ROGERS,

Plaintiff,

v.

EQUINOX HOLDINGS, INC., et al.,

Defendants.

Case No: 24STCV00681

Hearing Date: June 23, 2026

Calendar Number: 3

Plaintiff David Rogers moves to compel further responses at the deposition of defendant Equinox Holdings, Inc.'s Person Most Qualified to topics and questions defense counsel and its client refused to answer/and or to those topics for which defendant Equinox Holdings, Inc. refused and/or has failed to commit to produce its PMQ witness. (Not. of Mot. at p. ii:7-10.)

Plaintiff also requests that Defendant be compelled to provide further responses and document production to Plaintiff's Requests for Production of Documents contained in Plaintiff's deposition notice of Defendant's PMQ witness, including the documents that its PMQ witness identified during the deposition, to the extent applicable to the topics Defendant has refused to provide a witness for. (Not. of Mot. at p. ii:12-15.)

Plaintiff requests that the Court compel "the attendance and testimony at deposition of Defendant's PMQ witness for another deposition session, regarding the objected categories of examination" (Not. of Mot. at p. ii:16-17.)

Plaintiff requests the imposition of monetary sanctions against Defendant and its attorneys of record for reasonable attorneys' fees and costs incurred in bringing the motion. (Not. of Mot. at p. ii:18-20.)

Plaintiff's motion to compel further deposition testimony of Defendant's PMQ witness and request for monetary sanctions is DENIED.

The Court GRANTS Defendant's request for monetary sanctions in the sum of \$1,050.00. Monetary sanctions are to be paid by Plaintiff's counsel of record to Defendant's counsel of record in the amount of \$1,050.00 within 30 days of the date of this order.

Background

This is an employment action where plaintiff David Rogers ("Plaintiff") alleges that he was subjected to harassment, a hostile work environment, and subsequently wrongfully terminated.

On January 10, 2024, Plaintiff filed a complaint against defendants Equinox Holdings, Inc. ("Defendant"), Scott Derue, Jaime Murillo, Victoria Engle, and DOES 1 through 100, inclusive, alleging causes of action for (1) Sex Discrimination; (2) Retaliation in Violation of Government Code § 12940(h); (3) Retaliation in Violation of Labor Code § 1102.5; (4) Sexual Harassment; (5) Wrongful Termination; (6) Failure to Prevent Harassment, Discrimination and Retaliation; (7) Wrongful Termination in Violation of Public Policy; (8) Intentional Infliction of Emotional Distress; and (9) Negligent Infliction of Emotional Distress.

On July 24, 2024, Defendant filed an answer.

On September 3, 2025, the Court granted in part the ex parte application of Plaintiff to continue trial and associated deadlines. (09/03/25 Minute Order at p. 1.) The Court, inter alia, continued trial from October 27, 2025 to July 6, 2026. (Id.) The Court also indicated that "[t]he fact discovery cut-off shall remain September 26, 2025 except that discovery served by the parties prior to today's date may proceed through the end of 2025. All other litigation deadlines shall be based on the new trial date." (Id. [emphasis in original].) "There shall be no further continuances." (Id.)

On May 8, 2026, Plaintiff filed and served a motion to compel the further deposition testimony of Defendant's PMQ witness and request for monetary sanctions.

On June 9, 2026, Defendant filed an opposition.

As of Wednesday, June 17, 2026, as of 11:07 A.M., no reply has been filed. Any reply was required to have been filed and served at least five court days prior to the hearing. (Code Civ. Proc., § 1005, subd. (b).)

Legal Standard

Any party may obtain discovery . . . by taking in California the oral deposition of any person, including any party to the action.” (Code Civ. Proc., § 2025.010.) Code of Civil Procedure sections 2025.210 through 2025.280 provide the requirements for (among other things) what must included in a deposition notice, when and where depositions may be taken, and how and when the notice must be served. A deposition must be “scheduled for at least 10 days after service of the deposition notice.” (Code Civ. Proc., § 2025.270, subd. (a).)

“If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party . . . without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent’s attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice.” (Code Civ. Proc., § 2025.450, subd. (a).)

“If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” (Code Civ. Proc., § 2025.480, subd. (a).) “If the court determines that the answer or production sought is subject to discovery, it shall order that the answer be given or the production be made on the resumption of the deposition.” (Code Civ. Proc., § 2025.480, subd. (i).)

Discussion

Plaintiff seeks to compel the further deposition testimony of Defendant’s PMQ witness on topic numbers 32, 33, 45, 46, 49, 51-57, and 63 in his February 6, 2026 deposition notice (the “Deposition Notice”). (Declaration of Brian Angelini Filed May 8, 2026 (“Angelini Decl.”), ¶ 4; Exh. 1.) Plaintiff also moves to compel document production pursuant to the Deposition Notice.

Evidence in Support of the Motion

In support of the motion, counsel for Plaintiff provides a declaration. Brian Angelini declares, inter alia, that jury trial in this action is set for July 6, 2026. (Angelini Decl., ¶ 3.) “On February 6, 2026, Plaintiff served his deposition notice of Defendant’s PMQ witness, which included specific, enumerated topics and requests for production of documents.” (Angelini Decl., ¶ 4; Exh. 1.) Defendant served objections to the Deposition Notice. (Id., ¶ 5; Exh. 2.) Counsel attests that “[t]he parties agreed that the deposition would take place on March 30, 2026.” (Id., ¶ 6.) Prior to the deposition, counsel declares that “Defendant served a letter dated March 27, 2026 refusing to produce a witness as to the Disputed Topics: 32, 33, 45, 46, 49, 51-57, 63. At the deposition, the PMQ witness confirmed that a PMQ witness was not the PMQ witness as to the aforementioned topics (‘Disputed Topics’).” (Id., ¶ 7; Exh. 3.) Defendant indicated at the deposition that it was not producing a witness for the Disputed Topics. (Id., ¶ 8; Exh. 4.) Counsel “was prevented from asking questions pertaining to the Disputed Topics.” (Id., ¶ 9.)

Counsel further states that “[a]t the conclusion of the PMQ deposition, the [p]arties stipulated to proceeding with a second day for Defendant’s PMQ deposition, to complete Plaintiff’s examination of topics to which Defendant did not object.” (Angelini Decl., ¶ 10.) Counsel indicates that, since the March 30, 2026 deposition, he has “extensively met and conferred with Defendant regarding further deposition testimony and its unwarranted refusal to produce a PMQ on the Disputed Topics.” (Id., ¶ 11.) Counsel sets forth the relevance of the Disputed Topics. (Id., ¶¶ 13-19.)

Evidence in Opposition to the Motion

In support of the opposition, counsel for Defendant provides a declaration. Benjamin Z. Taylor declares, inter alia, that despite having an initial trial date of October 27, 2025, “Plaintiff waited until August 20, 2025 . . . to first issue a notice for a person most knowledgeable deposition in this matter.” (Declaration of Benjamin Z. Taylor Filed June 9, 2026 (“Taylor Decl.”), ¶ 5; Exh. B.) On August 29, 2025, Plaintiff served two more PMK deposition notices, which counsel states “listed the same 43

deposition categories as the original notice and indicated whether questioning on each of those topics would occur on the first or second day of the PMK deposition. Defendant served timely objections to these notices.” (Id., ¶ 6; Exhs. C and D.)

Attorney Taylor further states, *inter alia*, that in granting in part the *ex parte* application of Plaintiff to continue trial, the Court was explicit in its directive as to the fact discovery cut-off date. (Taylor Decl., ¶ 8; Exh. F.) In its September 3, 2025 order, the Court indicated that the “fact discovery cut-off shall remain September 26, 2025 [except] that discovery served by the parties prior to today’s date may proceed to the end of 2025. All other litigation deadlines shall be based on the new trial date. There shall be no further continuances.” (Id., ¶ 8; Exh. F.) At the time of the Court’s September 3, 2025 order, none of the 43 noticed categories in the three PMK deposition notices issued thus far “relate[d] to Defendant’s advertising, marketing, branding, ‘homosexual or sexual activities’ in Equinox’s clubs, membership revocations or suspensions.” (Id., ¶ 9.)

Critically, Attorney Taylor attests that while Plaintiff seeks to compel PMK testimony on thirteen categories, “only two of those thirteen PMK categories had been propounded at the time of the Court’s September 3, 2025 order: Category No. 32 and 33.” (Taylor Decl., ¶ 10.) On September 4, 2025, the day after the Court’s order, Plaintiff served another PMK deposition notice which “included the same previously noticed categories (Nos. 1-43), but also added twenty completely new and previously unnoticed categories (i.e., Nos. 44-63), including eleven of the at-issue categories.” (Id., ¶ 11.) On September 11, 2025, Plaintiff served a second amended notice of videotaped deposition of Defendant’s PMK, to which Defendant objected. (Id., ¶ 11; Exh. G.) Defense counsel informed Plaintiff’s counsel on January 19, 2026 that Defendant did not agree to a general extension of the discovery cutoff for items not currently pending. (Id., ¶ 17; Exh. H.) Counsel attests that Plaintiff has “never moved this Court for any form of relief related to the Disputed Categories until filing the instant Motion.” (Id., ¶ 13.) “The PMK deposition on agreed upon topics relating to the specifics of Plaintiff’s employment proceeded on February 12, 2026.” (Id., ¶ 18.)

Attorney Taylor further attests that “[t]he parties had agreed to conduct the PMK deposition on agreed upon topics relating to Equinox’s employment categories on March 13, 2026.” (Id., ¶ 19.) “PMK deposition sessions on all remaining non-disputed categories were completed on March 30, 2026 and May 12, 2026. Additionally, the parties reached a compromise as to one of the Disputed Categories (No. 63), and that topic was covered at the May 12 deposition.” (Id., ¶ 21.)

Scope of the Operative Deposition Notice

The Court finds it necessary to set forth the categories of testimony at issue in the instant motion. Plaintiff seeks to compel further responses to the following categories of testimony:

1. Topic No. 32 – Facts and circumstances of any reports and/or complaints (whether written or verbal) Defendant received from any current or former employees, including but not limited to Plaintiff, against any members at the West Hollywood Equinox location, including investigations of the same.
2. Topic No. 33 – Facts and circumstances of any reports and/or complaints (whether written or verbal) Defendant received from any members against other members at the West Hollywood Equinox location, including investigations of the same.
3. Topic No. 45 – Defendant’s California advertising, marketing, branding digital and media campaigns, strategy, and efforts during the period of January 1, 2020 through the present date, including the names and job titles of Equinox employees working in those capacities, and outside vendors providing Defendant with services or goods related to those matters.
4. Topic No. 46 – Defendant’s advertising, marketing, branding digital and media campaigns, strategy, and efforts during the period of January 1, 2020 through the present date, specifically relating to the West Hollywood Equinox location, including the names and job titles of Equinox employees working in those capacities, and outside vendors providing Defendant with services or goods related to those matters.

5. Topic No. 49 – Defendant's awareness of male homosexual sexual activities at the West Hollywood Equinox location, whether between members or members and employees, or both, during the period January 1, 2018 through present date.

6. Topic No. 51 – The facts and circumstances relating to all Equinox membership revocations or suspensions nationwide during the period of January 1, 2018 through the present date.

7. Topic No. 52 – The facts and circumstances relating to all Equinox membership revocations or suspensions in California during the period of January 1, 2018 through the present date.

8. Topic No. 53 – The facts and circumstances relating to all Equinox membership revocations or suspensions at Defendants San Francisco locations including Union Street, Pine Street, Sports Club San Francisco, Beale Street, Van Mission, Sports Club Los Angeles, Westwood, Century City, Beverly Hills, Miracle Mile, West Hollywood, Hollywood, Pasadena, Glendale, Studio City, Encino, Woodland Hills, South Bay, Palos Verdes and Downtown LA during the period of January 1, 2018 through present date."

9. Topic No. 54 – The facts and circumstances relating to all Equinox membership revocations or suspensions at Defendants San Francisco locations including Pacific Palisades, Santa Monica, Santa Monica East, Marina Del Rey, during the period of January 1, 2018 through present date.

10. Topic No. 55 – The facts and circumstances relating to all Equinox revocations or suspensions nationwide, during the period of January 1, 2018 through the present date, limited to revocations or suspensions of male members based in whole or in part on that members' conduct towards or with another member or members.

11. Topic No. 56 – The facts and circumstances relating to all Equinox revocations or suspensions nationwide, during the period of January 1, 2018 through the present date, limited to revocations or suspensions of male members based in whole or in part on that members' conduct towards or with an employee or employees.

12. Topic No. 57 – The facts and circumstances relating to all Equinox revocations or suspensions nationwide, during the period of January 1, 2018 through the present date, limited to revocations or suspensions of male members based to any extent on that members' physical conduct towards or with another member or employee.

13. Topic No. 63 – The compensation and benefits that Plaintiff could have earned during the period of October 3, 2022 through present date if Plaintiff remained employed by Defendant.

(Angeli Decl., Exh. B at pp. 4-8.)

The Instant Motion is Untimely

Defendant indicates that Topic No. 63 has been resolved. (Taylor Decl., ¶ 21.)

Accordingly, such deposition topic is moot for purposes of the instant motion.

Defendant argues that the motion is more than seven months overdue as to Topic Nos. 45, 46, 49, and 51-57. (Opp'n at pp. 8-9.) The Court finds the contention of Defendant is persuasive. The Court has reviewed the deposition notices issued prior to the Court's September 3, 2025 order. (Taylor Decl., Exhs. B, C, D.) Topic Nos. 45, 56, 49, and 51-57 were not included in any deposition notice propounded on Plaintiff prior to September 3, 2025. Accordingly, discovery is still closed as to such topics. (See 09/03/25 Minute Order at p. 1.)

As to Topic Nos. 32 and 33, such categories of testimony were requested prior to the Court's issuance of the September 3, 2025 order. (Taylor Decl., Exhs. B, C, D.) Defendant argues that the motion is at least three months overdue as to such topics. (Opp'n at p. 9.) Again, the Court finds that the contention of Defendant is persuasive on such point. Per the Court's order, Plaintiff was required to complete discovery as to such topics by "the end of 2025." (09/03/25 Minute Order at p. 1.) Defendant agreed to an extension of discovery as to such topics until January 30, 2026. (Taylor Decl., ¶ 19; Exh. H.) Accordingly, the instant motion is untimely as to such requests.

Further, Defendant contends that the untimeliness of Plaintiff's motion cannot be overlooked. (Opp'n at p. 9.) Trial is set to commence on July 6, 2026. "[I]f a party properly notices a discovery motion to be heard on or after the discovery motion cutoff date, that party has a right to have the motion heard. By negative implication, a party who notices a discovery motion to be heard after the discovery motion cutoff date does not have a right to have the motion heard." (Pelton-Shepherd Industries, Inc. v. Delta Packaging Products, Inc. (2008) 165 Cal.App.4th 1568, 1586 ("Pelton-Shepherd") [emphasis in original].)

The instant motion was filed after the discovery cutoff date and is set to be heard less than 15 days before trial. Plaintiff should have filed a motion for leave "under section 2024.050 to reopen discovery so that its motion to compel could be heard" (Pelton-Shepherd, supra, 165 Cal.App.4th 1568, 1587.)

As a tertiary matter, although requesting the production of documents, neither the memorandum of points and authorities nor the separate statement meaningfully address the document requests at issue. Due to the lack of sufficient argument with citations to legal authority as to why the production of documents should be compelled, the Court finds that such requested is unsupported. (Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215.)

Due to the numerous timeliness issues, the Court need not reach the merits of the objections of Defendant to the challenged topics of testimony.

Plaintiff's motion to compel further deposition testimony of Defendant's PMQ witness and request for monetary sanctions is DENIED.

Defendant's Request for Monetary Sanctions

Defendant requests monetary sanctions against Plaintiff's counsel in the sum of \$4,725.00. (Taylor Decl., ¶ 22.) Attorney Taylor has an hourly rate of \$525.00 per hour and attests that he spent more than nine hours on the opposition and related papers. (Id., ¶ 22.)

The Court finds that monetary sanctions against Plaintiff's counsel are warranted in the reasonable amount of \$1,050.00 (representing two (2) hours of work on the opposition at the rate of \$525 per hour) pursuant to Code Civ. Proc. § 2025.480. The Court finds that due to the numerous timeliness issues with the motion, the motion was not filed with substantial justification. (Code Civ. Proc., § 2025.480, subd. (j).)

The Court GRANTS Defendant's request for monetary sanctions in the sum of \$1,050.00. Monetary sanctions are to be paid by Plaintiff's counsel of record to Defendant's counsel of record in the amount of \$1,050.00 within 30 days of the date of this order.

Plaintiff is ordered to give notice.